

supplemental declaration attaching Sullivan's deposition transcript upon receipt, and Brokers' Compendium of Exhibits ("BCOE") Exhibit A has been reserved for Sullivan's certified deposition transcript. (*Id.* at ¶17.)

The Fourth District favors continuing summary judgment motions to resolve matters on their merits, even if a continuance would not serve the competing interest of judicial efficiency. (See *Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 399-400 [holding that even if the need to continue a hearing on a motion for summary judgment to conduct outstanding discovery was due to a party's lack of diligence, "the policy favoring disposition on the merits outweighs the competing policy favoring judicial efficiency."].) In *Levingston v. Kaiser Foundation Health Plan, Inc.* (2018) 26 Cal.App.5th 309, the court of appeal found that the trial court had erred in denying a request to continue a summary judgment motion where the request was made at the hearing and the party had not met the standard for a continuance under Code of Civil Procedure section 437c, subdivision (h). The court analogized the granting of an unopposed summary judgment motion to the equivalent of a terminating sanction and held that the continuance was therefore necessitated unless there had been a history of abuse of pretrial procedures or evidence that the violation was willful.

Based on the foregoing, the Court must grant the request to receive Sullivan's deposition given the trial is currently scheduled for September 11, 2026. (Code Civ. Proc., § 437c, subd. (h) [If it appears from the affidavits submitted in opposition that facts essential to justify opposition may exist but cannot for reasons stated, "the court shall deny the motion, order a continuance to permit...discovery to be had, or make any other order as may be just", emphasis added].)

3.

CASE #	CASE NAME	HEARING NAME
CVPS2500832	MELENDREZ VS UNITED GROUND EXPRESS, INC.	MOTION TO COMPEL FURTHER DISCOVERY RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE BY UNITED GROUND EXPRESS, INC.

Tentative Ruling: Granted.

Responding party is ordered to serve verified responses to the Demand for Production of Documents, Set One, No. 4, 5, 34, and 35 without objections within 30 days of service of notice (CCP § 2031.310).

Responding party is further ordered to pay attorney's fees and costs to moving party in the amount of \$3,566.00 within 30 days of service of notice. (CCP 2023.010, 2030.290 (c), 2031.310, and 2033.280.) P

Prevailing party ordered to give notice pursuant to CCP §1019.5.

This is an employment law discrimination action filed February 5, 2025 by Plaintiff Angelique Melendrez against Defendants United Ground Express, Inc., United Airlines, Inc., Donald Miller and Kevin Tomas, which alleges 10 causes of action for 1) discrimination in violation of FEHA, 2) hostile work environment, 3) retaliation in violation of FEHA, 4) failure to provide reasonable accommodation, 5) failure to engage in the interactive process, 6) failure to prevent discrimination, harassment, and retaliation, 7) wrongful termination in violation of public policy, 8) IIED, 9) whistleblower retaliation in violation of Labor Code section 1102.5, and 10) negligent hiring, supervision, and retention.

United Ground Express moves the court to compel Melendrez to provide further responses to Requests for Production of Documents (Set One) numbers 4, 5, 34 and 35 and for sanctions of \$4,566. The RFPs seek social media posts related to Plaintiff's employment and emotional distress claims and medical records and prescriptions relating to the same. United asserts that Melendrez agreed to produce these documents, but has failed to do so.

In opposition, Melendrez asserts that she has more than adequately responded to the discovery and any inability on her part to provide additional medical documentation regarding her claims lies strictly in the time required to retrieve these records from third-party custodians. Melendrez asserts that she is actively pursuing these records and will supplement her production immediately upon receipt. Melendrez asserts that sanctions based on the circumstances are inappropriate. Counsel's declaration submitted with the opposition declares that Plaintiff supplemented the RFPs and provided an additional 2,000+ documents from Plaintiff's medical providers.

In reply, United asserts that Plaintiff does not make any arguments based on her objections nor disputes that the documents are relevant and discoverable. United acknowledges that it received medical documents on July 23 at the same time as the opposition was served. However, United asserts that the responses were unverified and there was no production of social media documents.

Motion to Compel Further Response(s)

"Unless limited by order of the court ... any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved ... if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (Code Civ. Proc., § 2017.010.) The "relevance to the subject matter" and "reasonably calculated to lead to discovery of admissible evidence" standards are applied liberally. Any doubt is generally resolved in favor of permitting discovery, particularly where the precise issues in the case are not yet clearly established. (*Colonial Life & Acc. Ins. Co. v. Sup. Ct.* (1982) 31 Cal.3d 785, 790, fns. 7-8.) For discovery, admissibility at trial is not required. Rather, the test is whether the information sought might reasonably lead to other evidence that would be admissible. (Code Civ. Proc., § 2017.010; see *Davies v. Sup. Ct.* (1984) 36 Cal.3d 291, 301.)

A party may file a motion compelling further answers to requests for production if it finds that the responses are inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civ. Proc., §2031.310.)

A motion to compel further responses to requests for production requires the moving party to state "specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc., §2031.310(b)(1).) To establish good cause, the moving party must demonstrate relevance and specific facts justifying discovery. (*Kirkland v. Superior Court (Guess? Inc.)* (2002) 95 Cal.App.4th 92, 98.) The burden to show good cause for production "is met simply by a fact-specific showing of relevance." (*Tbg Ins. Servs. Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448.) Once good cause is established, the responding party has the burden to justify any objections. (*Kirkland, supra*, 25 Cal.App.4th at 98.)

The RFPs and responses at issue are as follows:

RFPs 4 and 5: These requests seek social media posts, pictures or videos uploaded to social media platforms, between January 2019 to present that contain or reflect communications with any current or former United employees, reference her employment or allegations against United,

or relate in any way to the events referenced in the complaint or references to emotional distress experienced by Plaintiff.

The responses to both RFPs are meritless boiler plate objections only. GRANTED

RFPs 34 and 35: These requests seek all medical records for any treatment sought and any prescriptions received since January 1, 2015.

The responses to both RFPs are meritless boiler plate objections only. Supplemental responses were served, which United asserts were unverified. Counsel did not attach a copy of the supplemental response for the court's review.

"Unsworn responses are tantamount to no responses at all. [Citation.]" (See *Appleton v. Superior Court* 206 Cal.app.3d 632, 636.) Where responses are not verified "the court should proceed to rule on [moving party's motion] as it would on any discovery motions when the responses are unverified." (*Melendrez v. Superior Court* (2013) 215 Cal.App.4th 1343, 1357-1358.) As Melendrez has not shown that supplemental verified responses to these requests were made, the court will rule on the merits of the motion. The responses provided to the original requests are boiler-plate objections only without merit. GRANTED.

Sanctions

United seeks sanctions pursuant to CCP section 2023.030. "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct.... If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (CCP §2023.030(a).) CCP §2023.010 sets forth conduct subject to sanctions as follows:

Misuses of the discovery process include, but are not limited to, the following:

- (a) Persisting, over objection and without substantial justification, in an attempt to obtain information or materials that are outside the scope of permissible discovery.
- (b) Using a discovery method in a manner that does not comply with its specified procedures.
- (c) Employing a discovery method in a manner or to an extent that causes unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.
- (d) Failing to respond or to submit to an authorized method of discovery.
- (e) Making, without substantial justification, an unmeritorious objection to discovery.
- (f) Making an evasive response to discovery.
- (g) Disobeying a court order to provide discovery.
- (h) Making or opposing, unsuccessfully and without substantial justification, a motion to compel or to limit discovery.

- (i) Failing to confer in person, by telephone, or by letter with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, if the section governing a particular discovery motion requires the filing of a declaration stating facts showing that an attempt at informal resolution has been made.

In addition, CCP §2031.310(h) provides that “[t]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

Here, the court finds that reasonable sanctions are warranted in the reduced, but reasonable amount \$3,566.00.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2507898	AMERICAN EXPRESS NATIONAL BANK VS STORER	MOTION TO SET ASIDE

Tentative Ruling: No tentative ruling. Hearing will be conducted on Wednesday ,August 5, 2026 at 8:30 a.m. in Department PS2.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2509122	RODRIGUEZ VS DEPARTMENT OF MOTOR VEHICLES	HEARING ON WRIT OF MANDATE

Tentative Ruling: Denied.

Respondent to submit proposed judgment within 5 days of this order and provide notice pursuant to CCP 1019.5.

Petitioner, Corina T. Rodriguez, seeks a writ of mandate commanding DMV to set aside its orders suspending her driver’s license upon finding Petitioner had violated the provision of the Vehicle Code prohibiting the operation of a motor vehicle while under the influence of alcohol and refusal to submit to a blood alcohol test. Specifically, Petitioner challenges the DMV’s July 12, 2025, order suspending or revoking Petitioner’s privilege to operate a motor vehicle and the subsequent decision by the DMV on September 25, 2025, sustaining the suspension or revocation of Petitioner’s driving privilege, which became effective on October 4, 2025.

On December 11, 2025, Petitioner filed a Petitioner for Writ of Mandate with this Court (Code Civ. Proc., § 1094.5) to set aside DMV’s order of suspension.

Administrative Record

The complete Administrative Record (“AR”) consists of approximately 87 pages of documents in a single volume of documents. (See Notice of Lodging Certified Administrative Records.)